

26STCV30484 26STCV30484

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-03

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Case Number: 26STCV30484 Hearing Date: August 3, 2026 Dept: 309

Superior

Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE

RULING

SEIF

"ADRIAN" GHALY

vs.

ST.

CUSTARD PRODUCTIONS, et al.

Case No.: 24STCV30484

Hearing

Date: August 4, 2026

Plaintiff's

motion for an order authorizing substitute service is DENIED, WITHOUT PREJUDICE.

On

11/19/2024, Plaintiff Seif “Adrian” Ghaly (Plaintiff) filed suit against St. Custard Productions (Defendant), alleging: (1) breach of employment contract; (2) disability discrimination; (3) retaliation; (4) non-payment of overtime wages; (5) waiting time penalties; and (6) illegal taking of gratuities.

On
4/16/2026, Plaintiff moved for an order substituting service on the Secretary of State.

The
motion is unopposed.

Discussion

Plaintiff
seeks an order substituting service of Defendant on the Secretary of State on the grounds that multiple efforts to locate and serve Defendant has been unsuccessful.

More
specifically, Plaintiff submitted evidence that multiple attempts were made at various addresses associated with Defendant, including:

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Attempts at 3130 W. Olympic Blvd.,
which was confirmed to be an invalid or vacant location;

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Attempts at 1850 Industrial Street,
where third parties confirmed Defendant did not operate at that location;

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Subsequent non-service reports
confirming inability to locate any responsible agent; and

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Personal service was attempted on
7/2/2025 at Defendant’s business location, however the court has rejected this proof of service.

However, the 3/23/2026

Notice of Rejection indicates that the proof of service was rejected due to defects with the proof of service, rather than some acknowledgement of the impossibility of service. Accordingly, Plaintiff must correct the defects there before establishing that service through the Secretary of State is the only viable method to effectuate service

Based on the foregoing, Plaintiff's motion for an order authorizing substitute service is denied, without prejudice.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.